

As part of the 2000 EPC revision, for greater clarity and consistency, R. 27a, 28 and 28a EPC 1973 were restructured, trimmed and incorporated (as R. 30 to 34 EPC) into the chapter on biotechnological inventions (see OJ SE 1/2003, 164, OJ SE 5/2007, 44, and 54). New R. 31 EPC deals with the deposit of biological material, new R. 32 EPC with the expert solution to availability and new R. 33 EPC with the availability of the deposited biological material as from the date of application of the European patent application (OJ SE 5/2007, 46; see also OJ 2017, A55 (CA/D 3/17), OJ 2017, A60 and A61 (notice)). The term "micro-organism" was replaced by "biological material" in 1996 (see OJ 1996, 390) – see R. 26(3) EPC for the definition of "biological material".

In T 1045/16 the board recalled that together with Art. 83 EPC, special provision is made in R. 31 EPC for inventions which involve the use of or concern biological material which is not available to the public and which cannot be described in the European patent application. In the case at hand, it was not in dispute that there was no deposit of such material with a recognised depositary institution as set out in R. 31(1)(a) EPC. The board explained that a deposit according to the Budapest Treaty was necessary under R. 31(1)(a) EPC only in cases where the relevant biological material was not available to the public. It had to be determined whether or not the relevant biological material in question had been made available to the public. According to G 2/93, R. 28(1) EPC 1973 (R. 31(1) EPC 2000) refers to Art. 83 EPC and serves to substantiate and to supplement the general requirements of that Article for a specific group of inventions for which a mere written description is not sufficient. Therefore, the board found that the provisions of R. 28(1) EPC 1973 were **subordinate to the requirements of Art. 83 EPC**. The requirements of Art. 83 EPC are **not time limited**. Thus, to be considered "available to the public" in the sense of R. 31(1) EPC, a biological material must be available in a manner that allows the skilled person to be certain that they can obtain it at least over the term of the patent. Deposit with a **non-Budapest Treaty institution** cannot ensure availability to the public. In the case at hand, the availability of plants of the accession PI313970 from the US National Plant Germplasm System was not sufficient. Further, the mention of the biological material in a scientific publication did not per se establish that said material was available to the public in the sense of R. 31(1) EPC. The claimed invention did not meet the requirements of Art. 83 EPC.

In T 1338/12 the board held, contrary to the examining division, that the application at issue was subject to the EPC 1973, specifically R. 28 EPC 1973 on depositing biological material. The board referred to the boards' established case law (see T 2068/11). What had to be established in the case in hand was whether the requirement in R. 28(3) EPC 1973 (corresponding to R. 33(1) EPC) had in fact been met, i.e. whether the *T. thermophilus* strain, variant GY1211, in question had been unreservedly and unrestrictedly available to the skilled person or the public on the relevant date. The board considered that the mere fact that this strain had been disclosed in two **scientific publications** was not enough by itself to meet that requirement. While the editors of a scientific journal could require that the authors of an article make the biological material publicly available, they could not be sure that they had always done so. Any request for a sample of the biological material had to be addressed directly to the authors themselves, so it was always left ultimately to their discretion whether to issue it.

7.6.1 Substantive law questions

R. 31(1)(b) EPC requires that the application as filed give such **relevant information** as is available to the applicant **on the characteristics** of the deposited biological material. Details of what is meant by "relevant information" can be found in the Guidelines (see F-III, 6 – March 2022 version).

In decision T. 418/89 (OJ 1993, 20) the characteristics of the monoclonal antibodies produced by the deposited strain were different from those mentioned in the claims. It was not possible to produce monoclonal antibodies from the deposited hybridoma using techniques recommended by the depository institution. The requirements of Art. 83 EPC 1973 were thus not met. A disclosure could not be regarded as sufficient if it was only possible to reproduce the invention after repeated requests to the depository institution and by applying techniques considerably more sophisticated than those the latter recommended. Nor could the scope of the patent be restricted to what had been deposited, as the characteristics of the deposit differed from the written disclosure in the patent. Thus a mere deposit of a hybridoma **without any corresponding written description** did not provide a sufficient disclosure. Similar conclusions were reached in decisions T. 495/89 and T. 498/94.

R. 31(1) EPC cannot be interpreted such that there is an obligation to deposit material to facilitate the reproduction if the invention can be repeated on the basis of the written description, even if this should be a much more cumbersome way than by merely growing the deposited micro-organism (see e.g. T. 223/92).

Similarly, in T. 412/93 the board stated that the need for a deposit cannot be introduced by reference to the concept of undue burden. This concept relates more to cases where the route that the reader is to follow is so poorly marked that success is not certain such as in T. 418/89. If the road is certain but long and laborious, the patentee is under no obligation to assist the disclosure by making actual physical samples available. The board felt that to come to the opposite conclusion would be effectively to introduce a requirement to make the best mode immediately accessible to the public, and such a requirement is not part of the European patent system (see also T. 431/96).

With respect to the question whether the reproducibility of specific micro-organisms (e.g. plasmids or viral strains) was assured by the written description in the absence of a deposit, the board, after careful examination of the written disclosure, held in some cases that the information provided in the application was sufficient to lead the skilled person reliably to the same micro-organisms (T. 283/86, T. 181/87); in other cases it was not (T. 815/90 of 20 October 1997, T. 816/90; see T. 2542/12, commercial fish farms in Norway – not a reliable source; also T. 1338/12, scientific publications).

The board in T. 32/17 decided (catchword) that the deposit of a hybridoma under R. 31 EPC for compliance with the disclosure requirement of Art. 83 EPC did not in itself convey any technical information about the molecular structure of the monoclonal antibody produced by that hybridoma, such as its amino acid sequence.

7.6.2 Procedural law questions

a) Conversion into deposit under the Budapest Treaty

T 39/88 (OJ 1989, 499) affirmed the principle that one important purpose of R. 28 EPC 1973 (R. 31 EPC) is to make the availability of the deposited organisms independent of any consent by the depositor. The board observed that the proper way of bringing a deposit originally filed for another purpose (here a US application) into line with the requirements of the EPC system was to formally convert the deposit into a deposit under R. 28 EPC 1973 (in the case of a deposit made on the basis of a special agreement between the EPO and the depositary institution) or into a deposit under the Budapest Treaty (which automatically covered R. 28 EPC 1973), as the case might be (see also T 239/87, T 90/88, T 106/88).

In T 2068/11 a lactobacillus strain had originally been deposited with a Japanese depositary institution that was not recognised under the Budapest Treaty and not listed by the EPO. The board ultimately decided that this deposit's conversion after filing of the European patent application had been too late; the application could not refer to the international deposit (application refused).

b) Late submission of deposit number

According to R. 28(1)(c) EPC 1973, the application had to state the depositary institution and the file number of the deposited biological material. In G 2/93 (OJ 1995, 275) the Enlarged Board of Appeal held that the provisions of R. 28 EPC 1973 were subordinate to the requirements of Art. 83 EPC 1973. The indication of the file number (accession number) of a culture deposit in a patent application was substantive because, under the EPC, it was instrumental in enabling a person skilled in the art to carry out the invention. The Enlarged Board therefore held that, contrary to the ruling in J 8/87 (OJ 1989, 9), the information concerning the file number could not be submitted after expiry of the time limit set out in R. 28(2)(a) EPC 1973 (i.e. sixteen months after the date of filing of the application or, if priority is claimed, after the priority date).

As for the term "publication" within the meaning of R. 28(2)(a), second part of sentence, EPC 1973 in the context of a European application filed as an international one, see T 328/04.

See T 227/97 (OJ 1999, 495) for the board's decision that reestablishment of rights may be available for the time limit set by R. 28(2)(a) EPC 1973 and R. 13bis.4 PCT.

c) Biological material deposited by a person other than the applicant

The board in T 2266/10 concluded that the information submitted met the requirements of R. 31(1)(d) EPC. In T 1338/12 and T 2542/12, by contrast, the boards refused applications on the basis that the declarations at issue had not been submitted in time.

8. The relationship between Article 83 and Article 84 EPC

8.1. Article 83 EPC and support from the description

The patent claims must clearly define the subject-matter for which protection is sought under Art. 84 EPC. In T 94/82 (OJ 1984, 75) it was held that this requirement was fulfilled in a claim to a product when the characteristics of the product were specified by parameters relating to the physical structure of the product, provided that those parameters could be clearly and reliably determined by objective procedures which were usual in the art. In such a product claim, it sufficed to state the physical properties of the product in terms of parameters, since it was not mandatory to give instructions in the claim itself as to how the product was to be obtained. The description, however, had to fulfil the requirements of Art. 83 EPC 1973 and thus enable the person skilled in the art to obtain the claimed product described in it (see also T 487/89, T 297/90, T 541/97). Nor should this be understood as also referring to those variants falling under the literal wording of the claim but which the skilled person would immediately exclude as being clearly outside the scope of practical application of the claimed subject matter, for example, claims including an open ended range for a parameter where it was clear for a skilled person that the open-ended range was limited in practice. Values of the parameter not obtainable in practice would not be regarded by the skilled person as being covered by the claims and thus could not justify an objection of insufficiency of disclosure (T 1018/05). See also T 1943/15 ("open-ended range").

It is of relevance whether a problem falls within Art. 83 or Art. 84 EPC when taking into consideration that examination in respect of the requirements of Art. 83 EPC is still permitted during opposition proceedings, whereas in respect of Art. 84 EPC it is limited during opposition proceedings to those cases where there has been an amendment (see T 127/85, OJ 1989, 271; see also T 301/87, OJ 1990, 335; T 1055/98; T 5/99). With regard to the examination in respect of Art. 84 EPC during opposition proceedings see also chapter II.A.1.4.; and recent decision G 3/14, confirming the jurisprudence exemplified by T 301/87).

In T 292/85 (OJ 1989, 275) the stated grounds for the refusal were that the disclosure was not sufficient under Art. 83 EPC 1973 and there was consequently a lack of proper support under Art. 84 EPC 1973. The board pointed out that in appropriate cases it is only possible to define the invention (the matter for which protection was sought, Art. 84 EPC 1973), in a way which gives fair protection having regard to the nature of the invention which had been described by using functional terminology in the claims. The need for fair protection governs both the considerations concerning the scope of claims and the requirements for sufficient disclosure. The board found that an invention is sufficiently disclosed if **at least one way** is clearly indicated enabling the skilled person to carry out the invention.

In T 409/91 (OJ 1994, 653; ex parte) and T 435/91 (OJ 1995, 188; inter partes) it was pointed out that the protection conferred by a patent should correspond to the technical contribution to the art made by the disclosure of the invention described therein, which excludes the patent monopoly being extended to subject-matter which, after reading the patent specification, would still not be at the disposal of the skilled person. The available

information must enable the skilled person to achieve the envisaged result within the whole ambit of the claim containing the respective functional definition without undue difficulty, and the description with or without the relevant common general knowledge must provide a fully self-sufficient technical concept as to how this result is to be achieved. T. 409/91 was followed up in T. 713/98, where the board stated that the requirement of understanding a claim characterised by a functional feature defining a result to be achieved was one of clarity and the requirement of implementing it was one of support, both within the meaning of Art. 84 EPC 1973. Implementation, viewed in relation to the disclosure as a whole, was highly relevant to the question of sufficiency under Art. 83 EPC 1973. See also T. 1225/07.

In the inter partes case T. 435/91 (OJ 1995, 188), one of the essential technical features was defined only by its function. It was not possible to identify, on the basis of the information contained in the patent specification or of common general knowledge, compounds other than those specifically mentioned as bringing about the desired effect. The board held that the compositions must all be available to the skilled person if the definition was to meet the requirements of Art. 83 EPC 1973.

However, as long as there are no concrete grounds for believing that the invention cannot be carried out within the whole range claimed, there is no reason for not allowing more broadly based claims in an application (T. 242/92, T. 484/92). In opposition proceedings the opponent bears the burden of proving that the invention cannot be carried out within the whole range claimed (T. 418/91, T. 456/91, T. 548/91). See in this chapter II.C.9.

In T. 1404/05 the board found that where a claim is vaguely formulated and leaves several constructions open as possibilities, and on one of these constructions part of the subject-matter claimed is not sufficiently described to be carried out, the claim is open to objection under Art. 100(b) EPC. To avoid this objection the claim needs to be explicitly restricted to a construction which is also possible on the vague formulation of the claim, but which construction is not open to an Art. 100(b) EPC objection. The mere fact that the description makes clear that this latter construction is the one intended does not mean that the claim can be treated as being confined to this latter construction. Art. 69 EPC and its protocol were intended to assist a patent proprietor in contending for a broader interpretation of a claim than perhaps its wording warranted, not for cutting down the scope of a claim.

In T. 553/11 the board pointed out that if the proprietor wishes to argue for a narrow scope of a claim, this should be on the basis of the ordinary wording of the claim, and not on the basis of something appearing only in the description (following T. 1404/05). The board also referred to T. 681/01, where it was emphasised that the normal rule of claim construction is that the terms used in a claim should be given their ordinary meaning in the context of the claim in which they appear. The description may not be used to rewrite the claim and **redefine** the technical features required by the claim in a way not warranted by the wording of the claim itself. In particular the description cannot be relied on to exclude subject-matter from the claim which the ordinary meaning of the terms used would include as part of what is claimed. See also chapter II.A.6.3. "Using description and drawings to interpret the claims".